

Lakhan Singh v. B.K. Singh, Adhishasi Abhiyanta

High Court of Judicature at Allahabad · Single Judge · 30 November 2022 · CONTEMPT APPLICATION (CIVIL) No. 5078 of 2021 · **Contempt dismissed; notice discharged after rejection treated as compliance.**

HEADNOTE

A writ-court direction to consider a power-connection application under the U.P. Electricity Supply Code, 2005 is complied with when the licensee later takes a final decision rejecting the application. The contempt court will not try disputed facts about whether that rejection was correct; the consumer must challenge the rejection before the appropriate forum. Contempt application dismissed; notice discharged.

FACTUAL SUMMARY

Lakhan Singh filed a civil contempt application against B.K. Singh, Executive Engineer, alleging non-compliance with an 18 November 2019 writ-court order requiring consideration of his power-connection application if he met the U.P. Electricity Supply Code, 2005. Notice issued after a prima facie case. The opposite party later filed a compliance affidavit. The Court recorded that on 20 November 2021 the opposite party had finally considered and rejected the connection application.

HOLDING-UNITS

INTERPLAY · UP-2005

contempt of consider-connection direction

HOLDING

Where the writ court required the licensee only to consider a connection application if the applicant fulfilled the U.P. Electricity Supply Code, 2005, a subsequent final rejection of that application is compliance. Disputed facts about the correctness of the rejection cannot be examined in contempt; the applicant's remedy is to assail the rejection before the appropriate forum. Contempt dismissed; notice discharged. ¶ 1

FLAG Order cites the 2005 Code generally; no clause number is given.

PRINCIPLE TAGS

contempt-compliance-by-rejection-of-connection The 18.11.2019 writ order required only consideration under the 2005 Code. The Court treated the 20.11.2021 rejection as compliance and refused to retry whether that rejection was correct. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 20.11.2021 REJECTION OF THE CONNECTION APPLICATION WAS CORRECT ON THE MERITS UNDER THE SUPPLY CODE

Applicant relegated to challenge that order before the appropriate forum, if so advised. ¶ 1